



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing five judgments on Tuesday 21 February 2017 and ten judgments and / or decisions on Thursday 23 February 2017.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 21 February 2017

[Šimaitienė v. Lithuania \(application no. 55056/10\)](#)

The applicant, Birutė Šimaitienė, is a Lithuanian national who was born in 1948 and lives in Kaunas (Lithuania). The case concerns her complaint about the restitution process for property owned by her father before nationalisation.

In 1991 Ms Šimaitienė asked the authorities to return to her some buildings and a plot of land owned by her father before nationalisation in 1940 and subsequently privatised. As the documents she had submitted to the authorities did not prove that her father had owned the property in question, she subsequently had to ask the domestic courts to establish as a legal fact that her father had owned the buildings. In May 2003 the Kaunas District Court established as a legal fact that Ms Šimaitienė's father had owned the buildings before the 1940 nationalisation. In October 2003 the authorities thus adopted a decision to restore Ms Šimaitienė's property rights. The authorities recommended, as per her request, that her property be restored to her by paying compensation in the form of securities. The total amount of the securities was based on an assessment carried out in July 2003 of the buildings' value, namely 36,000 Lithuanian Litai (LTL – approximately 10,426 euros (EUR)).

Between then and February 2011, when the transfer of the securities was finalised, Ms Šimaitienė challenged both the compensation indicated in the decision of October 2003 and the assessment of the value of the buildings, which she considered too low. Following a number of administrative decisions, the valuation of the property was officially approved by the authorities in June 2009 at LTL 57,000 (approximately EUR 16,508), of which Ms Šimaitienė's share was LTL 28,500 (approximately EUR 8,254). She submitted a request to be compensated in securities of a State-owned enterprise in August 2010 and the transfer of these securities at the exact level of compensation indicated was finalised in February 2011.

Relying on Article 1 of Protocol No. 1 (protection of property) and Article 6 § 1 (right to a fair hearing within a reasonable time) of the European Convention on Human Rights, Ms Šimaitienė was dissatisfied with the overall length of the restitution process in her case, which she alleges took 25 years, as well as with the amount of compensation paid to her, claiming that it did not reflect the true market value of the property.

[Kushtova and Others v. Russia \(no. 2\) \(no. 60806/08\)](#)

The applicants are Marzhan Kushtova, and six of her children, Magomet Kushtov, Minovski Tsitskiyeva, Madina Kushtova, Musa Kushtov, Fatima Kushtova and Khulimat Kushtova are Russian nationals who were born in 1925, 1950, 1954, 1960, 1961, 1966, and 1968 respectively. They live in the Republic of Ingushetia (Russia). The case concerns the disappearance of their son and brother, Ibragim Kushtov, who was born in 1971.

On 25 January 2006 Ibraghim Kushtov was driving his car when he was stopped by two traffic policemen near Magas airport in Ingushetia. He was then forced into a civilian vehicle by a group of men in dark-green camouflage uniform, carrying machine guns. He has not been seen since.

The applicants immediately complained about the abduction to various authorities, including the prosecutor's office, the Ministry of the Interior and the Federal Security Service ("the FSS"). They submitted throughout the investigation that they feared the involvement of law-enforcement officers, and in particular that their relative could be detained on FSS premises. The investigators sent formal requests for information about Ibraghim Kushtov's detention. In May 2006 the Ingushetia FSS replied, but denied any involvement of its agents in the abduction and detention. In December 2006 Ibraghim Kushtov's mother also requested that the investigators question the many people who had witnessed the abduction, including those who had had to stop when the traffic was interrupted during the abduction, the two traffic police officers who had stopped her son or indeed any other officers from the traffic police station, situated about 200m from where the incident had occurred. However, the investigation, suspended and resumed on a number of occasions with a long period of inactivity between October 2004 and December 2014, is still ongoing without identifying the perpetrators or discovering what has happened to the applicants' relative.

According to the applicants, their home had been searched on several occasions by the authorities. They submitted in particular that their home had been searched on suspicion of involvement in terrorist activities.

The Government did not dispute the applicants' version of events, but submit that Ibraghim Kushtov's abductors have not been identified and that no evidence has been found to show that members of law-enforcement were involved in his disappearance.

They applicants make a number of complaints under Article 2 (right to life) of the Convention, alleging in particular: that Ibraghim Kushtov had been abducted by Russian servicemen in order to lure his older brother, Isa Kushtov, who was wanted on terrorism charges, out of hiding and make him surrender; that Ibraghim was subsequently killed; and that the ensuing investigation into their allegations was ineffective. They also complain under Article 3 (prohibition of inhuman or degrading treatment) of the mental suffering caused to them by the disappearance of their relative and under Article 5 (right to liberty and security) of the unlawfulness of his unacknowledged detention. Finally, they rely on Article 13 (right to an effective remedy) to complain that there were no domestic remedies available to them for their grievances under Articles 2 and 3.

[Orlovskaya Iskra v. Russia \(no. 42911/08\)](#)

The applicant organisation, *Redaktsiya Gazety Orlovskaya Iskra*, is a non-governmental organisation that publishes *Orlovskaya Iskra*, a newspaper in the Orel Region (Russia). The case concerns the applicant organisation's conviction for an administrative offence, in relation to publishing critical articles about a politician.

In November 2007 two articles were published in *Orlovskaya Iskra*. They had been written by Ms O., the newspaper's staff correspondent. The articles concerned Mr Stroyev, the then governor of the Orel Region, and former Chairman of the Federation Council. At the time, Mr Stroyev was also no.1 on the regional list of the United Russia party for the upcoming elections to the Federation Council. Both articles were strongly critical of Mr Stroyev, including accusations of corrupt and nepotistic practices, that he had closed down a publicly owned newspaper which had been critical of him, and that he had prosecuted an individual who had spoken against him in public.

A few days after the publication of the second article, the Working Group on Informational Disputes of the regional Electoral Committee examined both articles. It found that the articles had contained elements of electoral campaigning, given that they had included negative information about Mr Stroyev, and that they created a negative attitude on the part of voters towards United Russia. The Working Group concluded that the articles had therefore breached section 52 § 6 of the Electoral

Rights Act of 2002, because they had not been paid for by the official campaign fund of any party participating in the campaign.

An official of the Electoral Committee then compiled an administrative offence report against the applicant organisation. A justice of the peace examined the case a few days later. The judge held that under the relevant legislation, “election campaigning” meant publications where information about one of the candidates prevailed and was combined with negative comment. As the impugned articles involved both of these elements, they amounted to election campaigning. Such material should have been paid for by a campaign fund, paid for by one of the candidates, or published free of charge; and in any event, the newspaper should have indicated who had sponsored the publication. Consequently, the publication of both articles had amounted to a breach of electoral law. The judge found *Redaktsiya Gazety Orlovskaya Iskra* guilty under Article 5.5 of the Code of Administrative Offences of 2001 and ordered it to pay a fine of 35,000 roubles (equivalent to 1,000 euros at the time).

The applicant organisation appealed to the Zheleznodorozhny District Court of Orel. However, the court also held that the articles had constituted campaign literature and rejected the appeal in December 2007. The applicant organization lodged two supervisory-review applications but to no avail.

Relying on Article 10 (freedom of expression), the applicant organisation complained about the classification of the material it had published as “election campaigning”, and of the fine that had been imposed upon it.

[Ovakimyan v. Russia \(no. 52796/08\)](#)

The applicant, Suren Ovakimyan, is a Russian national who was born in 1981 and lived in Yoshkar-Ola (Russia) before his conviction. The case concerns his allegation that he was tortured by the police in order to make him confess to a murder.

On 7 September 2007 Mr Ovakimyan was arrested as a suspect in a murder case. He alleges that he was pushed down in the street by three men in plain clothes who handcuffed him, put him in an unmarked car with a plastic bag over his head and took him to a forest where he was punched, kicked and given electric shocks to make him confess. He submits that he was taken from the temporary detention facility where he had been placed and tortured again the next day: in particular he was once again taken out of town, beaten, strangled, threatened with a revolver, thrown into a pit and threatened to be buried alive. After being taken back to the detention facility, he signed a “statement of surrender and confession”, as requested by an investigator.

During the ensuing criminal proceedings against Mr Ovakimyan, however, he denied ever having signed such a statement, alleging that the investigator had forged his signature. He also argued that he had never disclosed the location of the murder victim’s body, as alleged by the investigating authorities. Both before and during the course of the trial, he withdrew requests for the exclusion of certain evidence as inadmissible.

In November 2008 he was found guilty of murder and robbery and sentenced to 16 years’ imprisonment. The first-instance court notably based its findings on statements made by his two accomplices in the robbery, who were also eyewitnesses to the murder. As regards Mr Ovakimyan’s allegations of ill-treatment, the first-instance court found it impossible to establish the circumstances in which he had sustained the injuries – including bruising, swelling and abrasions – recorded when he had been placed in detention facilities on 7 and 9 September 2007.

The Russian Supreme Court upheld this judgment in February 2009, finding that the trial court had rightly not used evidence adduced at the time of Mr Ovakimyan’s alleged ill-treatment. It agreed, however, that the record of his arrest had been drawn up more than three hours after his actual arrest on 7 September 2007.

In the meantime Mr Ovakimyan had lodged a complaint with the prosecuting authorities about his ill-treatment. The authorities carried out a pre-investigation inquiry and decided on six different occasions that there was nothing to show that a crime had been committed. On that basis they therefore refused to open a criminal investigation. All six of these decisions were set aside by superior prosecutors, who found that the decisions lacked reasoning, were unlawful and based on an inquiry which was not thorough. To date, however, no criminal proceedings have been instituted or investigation carried out.

Relying on Article 3 (prohibition of torture and of inhuman or degrading treatment) and Article 13 (right to an effective remedy), Mr Ovakimyan alleges that he was tortured in police custody and that the investigation into his allegations was ineffective. Also relying on Article 5 § 1 (right to liberty and security), he complains that he was actually arrested at 3 p.m. on 7 September 2007 and not at 8.55 p.m., as recorded by the investigator. Lastly, he complains under Article 6 § 1 (right to a fair trial) that the criminal proceedings against him were unfair as certain evidence – namely the statement of surrender and confession and his disclosure of the location of the murder victim's body – had been obtained under duress and should have been declared inadmissible.

[Rubio Dosamantes v. Spain \(no. 20996/10\)](#)

The applicant, Ms Paulina Rubio Dosamantes, is a Mexican national who was born in 1971. She is a pop singer who is very well known in Spain under the name of Paulina Rubio. The case concerns her complaint that her honour and reputation were infringed by remarks made on television about her private life.

In April and May 2005 Ms Rubio's former manager gave interviews on three television programmes concerning various aspects of the singer's private life. In May 2005 Ms Rubio brought a civil action seeking protection of her right to honour and to privacy, against her former manager and various television presenters and staff members, television production companies and television stations. She complained about the content of certain programmes broadcast in April and May 2005, alleging that some of the comments made during the programmes had breached her fundamental rights.

In a judgment of 19 February 2007 the Madrid first-instance judge dismissed Ms Rubio's claims. The judge found that the comments concerning the drug use of Ms Rubio's boyfriend, R.B., had related solely to the state of their relationship and had not alleged that Ms Rubio had incited him directly to take drugs. As to the references to Ms Rubio's sexual orientation, the judge considered that they had not infringed her honour, as homosexuality should no longer be considered shameful and Ms Rubio herself had tacitly consented to the debate on the subject. Lastly, the judge found that the remarks concerning Ms Rubio's alleged ill-treatment of R.B. were likewise not damaging to her reputation.

Ms Rubio appealed. In a judgment of 29 October 2007 the Madrid *Audiencia Provincial* upheld the judgment complained of. In May 2009 an appeal on points of law by the applicant was declared inadmissible by the Supreme Court. Ms Rubio then lodged an *amparo* appeal with the Constitutional Court, which was also declared inadmissible.

Relying on Article 8 (right to respect for private and family life), the applicant alleges that the remarks made about her during various television programmes infringed her right to honour and to respect for her private life.

Thursday 23 February 2017

[D'Alconzo v. Italy \(no. 64297/12\)](#)

The applicant, Giuseppe D'Alconzo, is an Italian national who was born in 1964 and lives in Monterosi (Italy). The case concerns the applicant's inability to exercise his right of contact with his two children.

In January 2007 Mr D’Alconzo’s former girlfriend left Italy for the United States with their two children. Mr D’Alconzo applied to the judicial authorities seeking the return of his children. In May 2007, following proceedings for international child abduction, a court in Phoenix ordered the children’s return. They travelled back to Italy with their mother. In February 2010 the Court of Appeal placed the children in the care of social services but ruled that they should continue to live with their mother. Mr D’Alconzo was granted contact rights.

In March 2011 Mr D’Alconzo lodged a criminal complaint against his former girlfriend for child abduction. On the same day she lodged a complaint against the applicant alleging that he had indecently assaulted one of the children. For the next year Mr D’Alconzo did not see his children. At the public prosecutor’s request the District Court ordered the children’s temporary placement in a social services facility, noting that the parents’ behaviour was subjecting the children to very severe stress. In May 2011 the children were returned to their mother’s care. In September 2011 she brought a fresh complaint against Mr D’Alconzo alleging that he had indecently assaulted the other child. Mr D’Alconzo was acquitted of the indecent assault charge in May 2014.

In October 2011 the District Court ordered that meetings be arranged between Mr D’Alconzo and his children in the presence of social workers. He met his children 12 times between March and July 2012 with social workers present. No meetings took place between July 2012 and January 2013, owing to the children’s refusal and their mother’s lack of cooperation. In 2015 the applicant saw one of his children 17 times and the other 15 times.

In June 2016 the Rome Court of Appeal placed the children in the care of social services but designated their mother’s home as their main residence. It took into consideration, in particular, the conflict between the parents and their inability to make joint decisions concerning their children. The Court of Appeal also ordered social services to provide personal support to enable Mr D’Alconzo to re-establish ties quickly with one of his children, with whom relations had been strained at recent meetings. It also instructed them to arrange meetings with the other child, initially with a social worker in attendance but with a view to subsequent unsupervised meetings. According to Mr D’Alconzo, he last saw his children in April 2016 and June 2016 respectively.

Relying on Article 8 (right to respect for private and family life), Mr D’Alconzo complains about the length of the criminal proceedings brought against him for sexual abuse, which he claims damaged his relationship with his children, and about the decisions of the domestic courts, which in his view did not undertake efforts to help him rebuild his relationship with his children.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court’s online database [HUDOC](#).

They will not appear in the press release issued on that day.

Dibirov v. Azerbaijan (no. 4255/07)

Societe Edelweiss Gestion and Pire v. France (no. 6193/12)

Adigun v. Ireland (no. 19673/16)

Antoms v. Latvia (no. 58262/09)

Smadikov v. Russia (no. 10810/15)

Benavent Diaz v. Spain (no. 46479/10)

A v. Ukraine (no. 42289/09)

Kiyashko v. Ukraine (no. 37240/07)

Slovo Batkivshchyny v. Ukraine (no. 23335/07)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.